

26PR00665 Matter of John H. Hall Trust

County: sonoma

Division: Probate

Hearing date: 2026-09-04

Motion: Petition for Order for Partial Termination of Irrevocable Trust

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Petition for Order for Partial Termination of Irrevocable Trust

Tentative Ruling: This matter is CONTINUED to December 18, 2026, at 9:30 a.m. in Department 63 for the reasons stated below.

There is no proof of service of the petition. While consents have been filed, they do not include a waiver of notice of the hearing. Petitioner shall file proof of Code compliant service on all parties entitled to notice at least 15 days before the hearing.

In addition, the petition fails to comply with Local Rule 6.8.A, which requires: "For every petition filed pursuant to Division 9 of the Probate Code, the petition must include a copy of the entire trust instrument(s) relevant to the action, including all amendments thereto, and all attachments, schedules, and exhibits." Here, the attachments referenced in the trust (Exhibits A, B and C) are not included. The Court is particularly interested in these attachments as they purport to distinguish between the separate and community property of the settlors. Whether the real property that is the subject of this petition was community property, or the separate property of the first settlor to die, would be a fact the Court must consider in deciding whether to grant relief. Also, while the petitioner claims unification would simplify administration after the death of the remaining settlor by unifying title, in fact the survivor's trust pours over into the residuary trust upon the death of the surviving settlor, so this is already accomplished by the trust. And as to the claim that a home equity loan or reverse mortgage would be more easily obtained following the requested modification, this seems only theoretical as opposed to an actual justification, given the total assets alleged in the petition. There presently is not a clear reason why the modification is being requested now.

A verified supplement addressing the above matters, and providing copies of the missing trust exhibits, must be filed and served at least 15 days prior to the next hearing.